

23NWCV02321 23NWCV02321

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-09-08

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Case Number: 23NWCV02321 Hearing Date: September 8, 2026 Dept: R

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FLORENDO v. DOLLAR

TREE STORES, INC.

CASE NO.: 23NWCV02321

HEARING: Thursday, August 13, 2026, at 9:30 AM

I.

Defendant DOLLAR TREE STORES, INC's Motion to

Compel an Independent Mental Examination is CONTINUED to Wednesday, October 7, 2026, at 9:30 AM in Dept. SE-R.

II.

Defendant DOLLAR TREE STORES, INC's Motion

for Protective Order is CONTINUED to Wednesday, October 7, 2026, at 9:30 AM in Dept. SE-R.

Moving Party

to give notice.

Background

On July 24, 2023, Plaintiff JENNIFER FLORENDO

("Plaintiff") filed this Negligence action against Defendants DOLLAR TREE STORES, INC. ("Defendant") and DOES 1 through 100, inclusive.

Defendants WHITTIER CITY SCHOOL DISTRICT and ROBERTO PETER MEDINA ("Defendants") now seek an order granting leave of the Court to obtain a neurosurgical examination of Plaintiff AGUSTINA CISNEROS ("Plaintiff").

Discussion

On August 13, 2026, the Court issued the following orders:

"Further, the Court does not believe Counsel have exhausted their meet and confer obligations pursuant to Code. Indeed, Counsel Sallander declared that on May 28, 2026, he sent a letter to Plaintiff Counsel asking Counsel to withdraw the cumulative, excessive, and duplicative discovery requests. Counsel are advised that their meet and confer efforts should go beyond merely sending letters stating their respective positions. (See *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) "A determination of whether an attempt at informal resolution is adequate...involves the exercise of discretion. The level of effort at an informal resolution which satisfies the 'reasonable and good faith attempt' standard depends upon the circumstances. In a larger, more complex discovery request, a greater effort at informal resolution may be warranted. In a simpler, or more narrowly focused case, a more modest effort may suffice. The history of the litigation, the nature of the interaction between counsel, the nature of the issues, the type and scope of the discovery requested, the prospects for success and other similar factors can be relevant. Judges have broad powers and responsibilities to determine what measures and procedures are appropriate in varying circumstances." (*Obregon v. Sup. Ct.* (1998) 67 Cal.App.4th 424, 431.)

Therefore, the Court ORDERS the parties to meet and confer. Thereafter, the parties must submit a JOINT PROTECTIVE ORDER. If the parties agree on a protective order, the matter will be taken off calendar.

If the parties are unable to stipulate to a protective order, each party may submit a proposed protective order to the Court by Friday, August 28, 2026. The Court will consider the proposed protective orders and issue a ruling

thereafter.” (08/13/26, M.O.)

“Therefore,

the Court ORDERS the parties to meet and confer. Thereafter, the parties must submit a JOINT PROTECTIVE ORDER limiting what documents may and may not be produced. If the parties agree on a protective order, the matter will be taken off calendar.

If the

parties are unable to stipulate to a protective order, each party may submit a proposed protective order to the Court by Friday, August 28, 2026. The Court will consider the proposed protective orders and issue a ruling thereafter.” (08/13/26, M.O.)

On September 1, 2026, Defendant submitted “Declaration of Spencer T. Sallander Re Proposed Protective Order(s) Per Court Order and Plaintiff submitted Dr. Richard Frederick’s declaration in response to Defendant’s, “Declaration of Spencer T. Sallander Re Proposed Protective Order(s) Per Court Order.”

Given the parties’ late filings, the Court requires additional time to rule on the instant motions. Thus, the matter is continued.